

Court No. - 37

Case :- WRIT - C No. - 4673 of 2020

Petitioner :- Awadhesh Pratap Singh

Respondent :- State Of U.P. And 5 Others

Counsel for Petitioner :- Krishna Murari Tripathi

Counsel for Respondent :- C.S.C.,Baleshwar Chaturvedi

Hon'ble Abhinava Upadhya,J.

Hon'ble Shamim Ahmed,J.

Heard Sri Krishna Murari Tripathi, learned counsel for the petitioner and Sri Baleshwar Chaturvedi, learned counsel for the respondents.

For default in payment of electricity dues, recovery citation has been issued against the petitioner. However, at this stage, the petitioner submits that he is ready to pay the entire amount but in installments as provided under Clause 6.14 of the U.P. Electricity Supply Code 2005. It is further submitted that after the citation issued, the petitioner has deposited Rs.2.50 lakh in the office of respondent no. 4.

The writ petition is disposed of with the observation that the benefit of Clause 6.14 be given to the petitioner, if he is ready to deposit the entire amount by fixing in installments by the Executive Engineer. The said order shall be passed by the Executive Engineer within a period of one month from the date of certified copy of this order is presented.

For a period of one month, no coercive action shall be taken against the petitioner pursuant to the recovery citation dated 30.11.2019 (annexure 1 to the writ petition).

Order Date :- 10.2.2020

Ishan

(Shamim Ahmed,J.) (Abhinava Upadhya J.)